

STATE OF NEW YORK

8670--A

IN SENATE

January 7, 2026

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to enacting the "dollars for diesels act" relating to financial incentives for the retirement of certain heavy- and medium-duty diesel-powered vehicles

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "dollars for diesels act".

3 § 2. The environmental conservation law is amended by adding a new
4 section 19-0333 to read as follows:

5 § 19-0333. Dollars for diesels program.

6 1. Definitions: When used in this section:

7 a. "Heavy-duty diesel-powered vehicle" means any vehicle powered by
8 diesel fuel having a gross weight of greater than twenty-six thousand
9 pounds.

10 b. "Medium-duty diesel-powered vehicle" means any vehicle powered by
11 diesel fuel having a gross weight of greater than fourteen thousand
12 pounds but no more than twenty-six thousand pounds.

13 2. The commissioner, in consultation with the New York state energy
14 research and development authority, shall establish and administer a
15 program to provide financial incentives to owners of heavy- and medium-
16 duty diesel-powered vehicles of a model year two thousand ten or older
17 to retire and replace such vehicles with new heavy- or medium-duty dies-
18 el-powered vehicles of model year two thousand twenty-four or newer that
19 meet or exceed the applicable emission standards.

20 3. For a vehicle to be eligible for the vehicle retirement incentive
21 under this section, such vehicle shall be a heavy-duty diesel-powered
22 vehicle or a medium-duty diesel-powered vehicle, and shall have been
23 registered in the state of New York for at least three consecutive years
24 preceding the model year of the replacement vehicle. Registration shall

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13430-04-6

1 be continuous and active, with the vehicle in operable condition and
2 part of a functioning fleet.

3 4. Incentives may include direct cash payments, grants, or vouchers
4 payable upon proof of vehicle retirement and replacement as specified by
5 the department and the New York state energy research and development
6 authority.

7 5. The program shall utilize existing state and federal funds allo-
8 cated to the department and the New York state energy research and
9 development authority for diesel emissions reduction and clean transpor-
10 tation initiatives.

11 6. The commissioner and the New York state energy research and devel-
12 opment authority shall promulgate regulations or guidelines as necessary
13 to implement this section, including eligibility criteria, funding
14 amounts, and program administration.

15 7. The commissioner shall report annually to the governor and the
16 legislature on program outcomes.

17 § 3. This act shall take effect immediately.